
2:00 PM - LINE 5

24-CIV-06578

AARON KAMEYER VS KUMAR MANAGEMENT CORP. II, INC.

AARON KAMEYER
KUMAR MANAGEMENT CORP. II, INC.

HELGA HAKIMI
JONATHAN BRENNER

MOTION TO BE RELIEVED AS COUNSEL

TENTATIVE RULING:

The unopposed motion of Orlando Villalba to be relieved as counsel of record for plaintiff Aaron Kameyer is **DENIED without prejudice**. Plaintiff's counsel has not offered sufficient proof that the moving papers were served in compliance with California Rules of Court, rule 3.1362(d). The proof of service does not reflect that the motion and declaration were served on the client as required by the rule of court.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM - LINE 6

24-CLJ-07288

SYNCHRONY BANK VS. ZAW OO

SYNCHRONY BANK
ZAW OO

JULI BHUSKUTE

MOTION FOR ENTERING JUDGMENT PURSUANT TO DEFENDANT'S DEFAULT UNDER SETTLEMENT AND RELEASE AGREEMENT [C.C.P. 664.6]

TENTATIVE RULING:

Plaintiff Synchrony Bank's unopposed motion to enter judgment pursuant to the parties' stipulation against defendant Zaw Oo is **DENIED**.

Under Code of Civil Procedure, section 664.6 the court retains jurisdiction in a case pending full performance of the terms of a written settlement agreement and such agreement may then be enforced upon motion of the aggrieved party.

Here, the parties entered into a stipulated settlement agreement on or around January 8, 2025 and plaintiff filed a notice of settlement of the entire case with this court on March 24, 2025. A copy of the parties' settlement agreement is attached as Exhibit 1 to the declaration of plaintiff's counsel Spencer Penuela, filed in support of this motion. The parties agreed that judgment in the amount of \$3,179.32 would not be entered so long as defendant made monthly payments to plaintiff until the balance was paid judgment amount in full. (Penuela Decl., ¶ 4, see also exh. 1, ¶¶ 1, 3, 5, 9.)

In the event of default, the parties agreed that the court was authorized to enter judgment in favor of the plaintiff and against defendant in the amount of \$14,548.24, plus costs, minus credit for any payments actually made pursuant to the Stipulation. (Penuela Decl., exh. 1 ¶ 5.) Defendant defaulted after making payments totaling \$1,800. (*Id.*, ¶ 6.)

The parties' agreement required plaintiff to notify defendant in writing of the default and provide time to cure. (Penuela Decl., exh. 1 ¶ 5.) No notice of default appears to have been sent. Accordingly, the court cannot enforce the terms of the settlement agreement and finds that plaintiff has not established that it is entitled to the judgment sought. The motion is therefore denied.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.